

Court No. - 37

Case :- WRIT - C No. - 39313 of 2017

Petitioner :- Jag Dev Prasad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Harish Chandra Singh

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Put up this case on 01.09.2017, on the request of learned counsel for the respondent Sri Pankaj Srivastava who may obtain instructions as to whether any proceedings for theft were initiated afresh pursuant whereto impugned recovery citation has been issued or what is the status of the recovery and for which period.

Order Date :- 29.8.2017

S.Chaurasia

Court No. - 37

Case :- WRIT - C No. - 39313 of 2017

Petitioner :- Jag Dev Prasad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Harish Chandra Singh

Counsel for Respondent :- C.S.C., Pankaj Srivastava

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Put up on Thursday next (07.09.2017) as requested by Sri Pankaj Srivastava to obtain complete instructions as the instructions obtained are with regard to the incident of 2011.

The present petition arises out of an incident in the year 2015. Let such instructions be obtained concerning the said incident. Learned counsel for the respondent/Electricity Department may inform the Executive Engineer concerned for making available the information even if the Assistant handling the same is on leave.

Order Date :- 1.9.2017

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Court No. - 37

Case :- WRIT - C No. - 39313 of 2017

Petitioner :- Jag Dev Prasad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Harish Chandra Singh

Counsel for Respondent :- C.S.C., Pankaj Srivastava

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

On the request of Sri Pankaj Srivastava, learned counsel for the respondent, put up this case on Tuesday i.e 12.09.2017.

Sri Pankaj Srivastava states that enquiries are to be made as to whether the petitioner has filed a civil suit or not.

Order Date :- 7.9.2017

S.Chaurasia

Court No. - 37

Case :- WRIT - C No. - 39313 of 2017

Petitioner :- Jag Dev Prasad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Harish Chandra Singh

Counsel for Respondent :- C.S.C., Pankaj Srivastava

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Today, instructions have been produced by Sri Pankaj Srivastava, learned counsel for the respondent which indicates action having been taken against the petitioner on account of theft of electricity as well as illegal consumption beyond the purpose for which the electricity connection was granted.

It is stated in the reports that the petitioner was running a flour mill and other such machines. A photostat copy of the said documents have been supplied to the learned counsel for the petitioner today.

Learned counsel for the petitioner prays for time to study the same and seek instructions from the client.

Put up on 20th September, 2017.

Order Date :- 12.9.2017

Sumit S

Court No. - 37

Case :- WRIT - C No. - 39313 of 2017

Petitioner :- Jag Dev Prasad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Harish Chandra Singh

Counsel for Respondent :- C.S.C., Pankaj Srivastava

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Put up tomorrow i.e. 21.9.2017.

Order Date :- 20.9.2017

BKM/-

Court No. - 37

Case :- WRIT - C No. - 39313 of 2017

Petitioner :- Jag Dev Prasad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Harish Chandra Singh

Counsel for Respondent :- C.S.C., Pankaj Srivastava

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Sri D.P. Singh learned Senior Counsel for the petitioner
Sri Pankaj Srivastava, learned counsel for the
respondent.

Put up for orders tomorrow.

Order Date :- 21.9.2017

M. ARIF

Court No. - 37**Case :-** WRIT - C No. - 39313 of 2017**Petitioner :-** Jag Dev Prasad**Respondent :-** State Of U.P. And 4 Others**Counsel for Petitioner :-** Harish Chandra Singh**Counsel for Respondent :-** C.S.C., Pankaj Srivastava**Hon'ble Amreshwar Pratap Sahi, J.****Hon'ble Rajiv Lochan Mehrotra, J.**

Heard Sri D.P. Singh, learned Senior Counsel alongwith Sri Harish Chandra Singh for the petitioner and Sri Pankaj Srivastava for the respondent-Electricity Department and learned Standing Counsel for the state.

This writ petition was entertained and the following orders were passed on 29.08.2017, 01.09.2017, 07.09.2017 and 12.09.2017 respectively:-

29.08.2017

"Put up this case on 01.09.2017, on the request of learned counsel for the respondent Sri Pankaj Srivastava who may obtain instructions as to whether any proceedings for theft were initiated afresh pursuant where to impugned recovery citation has been issued or what is the status of the recovery and for which period."

01.09.2017

"Put up on Thursday next (07.09.2017) as requested by Sri Pankaj Srivastava to obtain complete instructions as the instructions obtained are with regard to the incident of 2011."

The present petition arises out of an incident in the year 2015. Let such instructions be obtained concerning the said incident. Learned counsel for the respondent/Electricity Department may inform the Executive Engineer concerned for making available the information even if the Assistant handling the same is on leave."

07.09.2017

"On the request of Sri Pankaj Srivastava, learned counsel for the respondent, put up this case on Tuesday i.e 12.09.2017."

Sri Pankaj Srivastava states that enquiries are to be made as to whether the petitioner has filed a civil suit or not."

12.09.2017

"Today, instructions have been produced by Sri Pankaj Srivastava, learned counsel for the respondent which indicates action having been taken against the petitioner on account of theft of electricity as well as illegal consumption beyond the purpose for which the electricity connection was granted.

It is stated in the reports that the petitioner was running a flour mill and other such machines. A photostat copy of the said documents have been supplied to the learned counsel for the petitioner today.

Learned counsel for the petitioner prays for time to study the same and seek instructions from the client.

Put up on 20th September, 2017."

The dispute relates to the process of recovery initiated against the petitioner that arises out of electricity dues for which a citation has been issued on 2nd June, 2017. The petitioner claims that he has a connection for a tube-well with a motor for 7.5 horse power. The allegations against him are that he was found to have been indulging in theft of electricity as apart from running the tube-well, he was also operating another 7.5 horse power motor to run a flour-mill and an oil expeller.

The petitioner in paragraph nos. 5 to 18 has narrated the history of a previous dispute of 2011 relating to an alleged theft and incorrect billing as well as disconnection of the same electricity supply. However, the same is for the time being of no relevance and Sri D.P. Singh learned Senior Counsel has also urged that the same has been stated which has no connection with the present dispute.

The dispute in the present writ petition relates to an alleged checking having been carried out on 24.11.2015 when the petitioner was again found to have been illegally operating the flour-mill and oil expeller alongwith his tube-well with two 7.5 horse power motor, as against a sanctioned connection if only one 7.5 horse power motor. The petitioner in the writ petition has alleged that till 31st May, 2017, he had absolutely no knowledge about any proceedings having been undertaken against him of either registering an FIR of theft or carrying out any assessment proceedings being consumption of any

such electricity as stated by the respondents through an additional 7.5 horse power motor. It has been stated that no FIR has been lodged till date and the assessment proceedings have been carried out in total violation of the provisions of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

Sri Singh contends that the procedure prescribed for inspection, provisional assessment, hearing, and final assessment for an alleged unauthorized use of the electricity has not been followed and, therefore, any assessment made under Section 126 of the Electricity Act, 2003 is invalid. In paragraph 34, it has been stated that since no final assessment order has been passed till date, therefore, there is no occasion for the petitioner to prefer any appeal and the entire proceedings being in violation of principles of natural justice, the consequential recovery proceedings deserve to be quashed.

When the matter had been taken up on the previous occasions a set of the checking report, a copy of the speaking order that was passed on 02.05.2016, the provisional assessment documents and the demand notice were also supplied and whereafter a supplementary affidavit was filed by the petitioner. Through the supplementary affidavit, the facts stated in the writ petition have been supplemented with regard to the earlier proceedings of the order of 2011. Additionally a prayer for treating paragraph 39A to 39F as recorded in the supplementary affidavit be read as part of the petition. There is no application for amendment but we have taken notice of the said facts.

Sri D.P. Singh, learned Senior Counsel has urged that even if it is argued that the petitioner had come to know about all the assessment proceedings on 1st June, 2017 then this does not amount to compliance of the procedure prescribed in law which has been discussed in detail in the judgment of ***Ashok Kumar Vs. State of U.P. 2008 Volume 6 ADJ Pg 660.***

He submits that a distinction has to be drawn between the word “service” and “having knowledge” of the proceedings inasmuch as it is the

obligation and duty of the respondents to serve a notice which the petitioner denies having received. He contends that there is no evidence to indicate that the notices of provisional assessment or final assessment were dispatched by registered post and the orders appear to be captioned printed orders stating that they have been sent by registered post without any supporting document to that effect. Thus, any dispatch and service of notice or order in relation to provisional or final assessment is not established and, therefore, if the petitioner had come to know of the same from the office of the respondents, the same does not amount to compliance of the procedure for carrying out the assessment and passing an order in accordance with law. He further submits that when the procedure prescribed is provided in law then it should be followed in that manner alone or else the proceedings would stand vitiated. It is urged that the documents which were supplied and which have been filed alongwith the supplementary affidavit nowhere indicate any signature of the petitioner, or any endorsement to the effect that the petitioner has refused to receive the same.

In such circumstances, the entire proceedings being in violation of principles of natural justice and non-compliance of procedure, the recovery deserves to be quashed and the respondent-authorities should be directed to carry out fresh assessment proceedings.

In this background, he urges that the petitioner cannot be relegated to file an appeal against the assessment order dated 02.05.2016 under Section 127 of the 2003, Act which is also a onerous procedure where the petitioner will have to deposit 50% of the amount before the appeal is treated to be competent. The determination of any provisional assessment or this communication or any prior notice being absent, the recovery cannot be made. He has also questioned the status of the checking report contending that neither the inspection nor the checking has been carried out on the spot and it is all paper work which has been prepared sitting in the office, hence, the impugned recovery should be quashed.

Replying, to the said submissions, Sri Pankaj Srivastava submits that there is a presumption of service of notice and not only this the petitioner according to his own reply submitted on 1st June as well as on 3rd June, copies whereof are Annexure No. 8 and 10 to the writ petition, has indicated having knowledge of the entire proceedings, yet he has not chosen to respond to the same prior to the passing of the final assessment order on 2nd May, 2016. It is, therefore, urged that there is no illegality, irregularity or any error in the calculation which has not even being explained in the supplementary affidavit filed by the petitioner. The petitioner has only questioned the procedural part and even his objection which has been filed later on does not indicate any specific challenge being raised to the calculation made by the respondent-Department. Sri Singh, learned counsel for the petitioner contends that the entire action is being questioned and no liability is being accepted by the petitioner which is totally denied.

We have considered the submissions raised and there is nothing to indicate that any First Information Report was actually lodged even though there was a recommendation for the same against the petitioner on the checking report dated 24.11.2015. The checking report dated 24.11.2015 does not bear the signature of the petitioner but it endorses that during inspection a 7.5 horse power motor was found being operated to run a flour-mill and oil expeller, apart from another 7.5 horse power motor being utilized for running the tube-well. This checking report dated 24.11.2015 appears to have been submitted for a provisional assessment and a proposed demand of the revenue recoverable has been calculated. The said provisional assessment is stated to have been dispatched by registered post on 2nd January, 2016 and the final assessment order is stated to have been passed on 2nd May, 2016 on the strength whereof a demand notice under Section 5 of the U.P. State Electricity Consumption Recovery Act, 1958 has been issued.

The final assessment order dated 2nd May, 2016 states that the notice was dispatched on 2nd January, 2016 but no representation was filed by the

petitioner, whereafter the final assessment was made on 2nd May, 2016. It is obvious that the final assessment order was passed after almost four months of the issuance of the notice. The recovery citation was issued on 24th March, 2017. The petitioner alleges that he had not received the said certificate of recovery and it is only after having come to know of the same on 31st May, 2016 that he filed the first representation on 1st June, 2016 that was received in the office of the Executive Engineer. It is urged that on the very next date i.e. 2nd June, 2017, the citation was issued, when he filed a fresh representation which is annexed as Annexure No. 10, before the Managing Director with a copy of the same to the Executive Engineer clearly stating therein that when the petitioner had arrived in the office on 1st June, 2017 then he came to know about the assessment proceedings and the checking report dated 24.11.2015 as well as the order dated 02.05.2016 and the certificate of demand dated 24.03.2017.

It is thus, evident from the aforesaid facts on record that the petitioner did have knowledge of the checking report dated 24.11.2015 and the final assessment order dated 2nd May, 2016 atleast on 1st June, 2017. It is not understood as to why the petitioner inspite of having knowledge of these documents as admitted to him in his representation dated 01.06.2017 and 03.06.2017 did not choose to disclose the contents of the same in the writ petition.

Sri D.P. Singh, learned Senior Counsel for the petitioner has urged that copies of such documents were never served on the petitioner and even if he had knowledge of the same it cannot be presumed that the petitioner has tried to withhold the information from this Court.

In our opinion Sri. D.P. Singh is correct to that extent that the petitioner had acquired knowledge which is stated to be on his own but it is difficult to accept the proposition that inspite of having knowledge of the said documents, why did the petitioner choose not to bring it on record through the writ petition which was supplied to his counsel later on during the course of the

hearing before this Court.

We cannot appreciate this form of presentation of the writ petition, that too even under extra-ordinary jurisdiction under Article 226 of the Constitution of India where the petitioner inspite of having knowledge of the material against him does not choose to bring it on record or even explain the contents thereof except to take the plea of not having been served with the said documents previously. The petitioner on approaching this Court under Article 226 of the Constitution of India ought to have disclosed the entire material himself and it was open to him to question the correctness or otherwise apart from the procedural aspect. But the petitioner even after having received the same through the supplementary affidavit has not satisfactorily questioned the correctness of the contents of the said documents.

In this background, we are not inclined to entertain this petition and call for a counter affidavit from the respondents as we find that a statutory remedy under Section 127 of the 2003, Act is available to the petitioner, even though it is onerous. Apart from this, we find that this challenge raised about the entire assessment proceedings being in violation of principles of natural justice and being ex-parte was already represented by the petitioner before the Executive Engineer through his representation dated 1st June, 2017. The factual findings with regard to any evidence being available of prior notice, therefore, if being ex-parte could have been pursued before the Executive Engineer himself.

We are, therefore, not inclined to entertain this writ petition as we find that the Executive Engineer-respondent no. 3 can delve into this issue of the proceedings having been undertaken as alleged without any notice to the petitioner or alternatively the petitioner can file an appeal under Section 127 of the Act, 2003.

If the petitioner approaches the respondent no. 3 alongwith a the certified copy of this order it shall be open to the respondent no. 3 to pass such appropriate orders as may be necessary within a period of three weeks.

Through such an application, keeping in view the contentions raised by the petitioner, the petitioner can avail of the remedies as observed hereinabove. Any recovery as challenged in this writ petition would, however, be subject to any orders being passed by the authorities as referred to hereinabove.

The writ petition stands **disposed of** with the said directions.

Order Date :- 22.9.2017
S.Chaurasia